

TENTATIVE RULING

Case: **Davis Hospitality Fund, LP v. Royal Ganesh, LLC et al.**
 Case No. CV2025-0257

Hearing Date: **March 10, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff's motions to compel as to defendants:

Based on the parties' joint statement re discovery motions, plaintiff Davis Hospitality Fund, LP's ("plaintiff") amended motion to compel production of documents is **CONTINUED** to **June 11, 2026**, at 9:00 a.m. in Department Eleven. The Court also notes plaintiff's withdrawal of its amended motion to compel discovery responses.

As to plaintiff's amended motion to compel production of documents, the parties are **DIRECTED** to file a joint statement regarding meet and confer efforts and an update on: (1) defendants Ashok Patel and Royal Ganesh, LLC's responses to these discovery requests; and (2) the remaining issues in plaintiff's motion. The joint statement must be filed by **May 28, 2026**.

Plaintiff's request for ruling re motion to compel production from third parties:

Parties are **DIRECTED TO APPEAR**.

TENTATIVE RULING

Case: Kays et al. v. FCA US LLC et al.
Case No. CV2025-1760

Hearing Date: March 10, 2026 **Department Fourteen** **9:00 a.m.**

The Court reminds defendant FCA US LLC of the memorandum page length limitations. (Cal. Rules of Court, rule 3.1113(d) [stating that “no opening or responding memorandum may exceed 15 pages”].) “[n]o reply or closing memorandum may exceed 10 pages.”) In the future, the Court may decline to consider any argument or legal authority found in pages exceeding the maximum permitted number of pages.

The Court rules on defendant’s demurrer to plaintiffs Robert Kays and Jane Kays’ first amended complaint as follows:

- Defendant’s demurrer to the first, second, and third causes of actions [brought pursuant to Civil Code section 1793.2] on the ground that these causes of action are time-barred by the statute of limitations and statute of repose found in Code of Civil Procedure section 871.21 is **OVERRULED**. (Code Civ. Proc., §§ 430.10, subd. (e); see *Bell v. Bank of California* (1908) 153 Cal. 234, 245.) The Court finds that defendant fails to show that it elected to proceed under Code of Civil Procedure section 871.29 because this evidence presented on this issue is extrinsic to the first amended complaint and defendant did not request that the Court judicial notice of it. (Code Civ. Proc., § 871.20, subd. (a); see *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Ion Equip. Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881.) Further, new arguments may not be raised for the first time in a reply brief. (*Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 770 [an issue not adequately raised in moving papers is forfeited].)
- Defendant’s demurrer to the fourth cause of action for breach of implied warranty on the ground that it is time-barred by the four-year statute of limitations is **OVERRULED**. (Code Civ. Proc., §§ 430.10, subd. (e); see *Bell, supra*, 153 Cal. at p., 245.) While the Court finds that a cause of action based on a latent defect has a limited prospective existence beyond the date of sale, no legal authority has been provided setting forth how the Court determines the date the statute of limitations begins to run when a latent defect is alleged. (See *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1303-1304, 1309 [“The implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale.”].)
- Defendant’s demurrer to the sixth cause of action for fraudulent inducement – concealment on the ground that it is time-barred by the three-year statute of limitations is **OVERRULED**. (Code Civ. Proc., §§ 430.10, subd. (e); see *Bell, supra*, 153 Cal. at p., 245.) The Court finds that plaintiffs’ delay in discovering the alleged fraud was excusable and that the delayed discovery doctrine applies. (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1110 [“Under the discovery rule, the statute of limitations begins to run when the plaintiff suspects or should suspect that her injury was caused by wrongdoing, that someone has done something wrong to her.”]; *Johnson v. Ehrgott* (1934) 1 Cal.2d 136, 137-138; see *Broberg v. The Guardian Life Ins. Co. of America* (2009) 171 Cal.App.4th